

Ch #12:

Regulation and Control of Personal Information: data-protection, defamation and related issues:

Data protection Evolution:-

→ Data protection gained attention when people realized that a large amount of personal information was being collected and stored on computers. Often this data was being used for purposes other than what it was initially collected for. Sometimes, the data was incorrect, incomplete or outdated.

→ These issues came to light in the 1970's, especially in the UK and Europe, leading to the first UK data protection Act in 1984.

→ it focused on protecting:
Using incorrect, incomplete or irrelevant personal data.

→ Accessing personal data by unauthorized people.

→ Using personal data for purposes other than those for which it was collected.

→ By the 1990s, new concerns arose with the growth of the internet. Companies could track people's online habits to create profiles for marketing or even harmful purposes like blackmail.

→ Privacy also became a big issue.

Data Protection

↳ it refers to how your personal info is used by the organization or being an organization how would you make sure to protect data.

The UK initially introduced data protection laws in the 1984 Data Protection Act, which was later replaced by the 1998 Data Protection Act.

Key terms in the Act

Data:

Information processed automatically, intended for processing, or stored systematically.

Data Controller:

A person who determines why or how personal data is processed. This may

is a legal person or a natural person.
Data processor:

Someone processing data on behalf of a data controller, excluding employees. (e.g. online service providers).

Personal Data:

Data which relates to a living person that can identify them, such as their name, opinions about them, or intentions towards them.

Sensitive Personal Data:

Includes details like race, health, political views, religion, sexual life, or criminal history. Strict rules apply to this type of data.

Data Subject:

The individual whose data is being processed.

Processing:

Any operation on data, including collecting, organizing, storing, altering or deleting it.

Data Protection Principles

→ The Act outlines eight principles to ensure proper handling of personal data.

1. Fair and lawful processing:

- Data should be handled fairly and legally. Process personal data only with a valid legal basis.
- Processing requires the data subject's or a legal obligation.
- For sensitive data, explicit agreement is required.

2. Purpose Limitation:

- Data should only be collected for specific, lawful purposes and not used for unrelated purposes.

3. Data minimization: (only collect & process minimum amount of data)

- Only collect data that is adequate, relevant, and not excessive for the stated purpose.
- Violations can occur due to ignorance.

4. Accuracy:

- Data must be accurate and kept up-to-date.

- Organizations face challenges, such as keeping track of frequently changing addresses.

5. Storage Limitation:

- Data should not be kept longer than necessary for its purpose.
- Some data may need to be stored longer due to legal or practical reasons.

6. Respect for data subject's right:

- Personal data should be processed in accordance with the rights of data subject.

7. Security measure:

- Appropriate technical and organizational steps must protect data from unauthorized access, loss or damage.

8. Data transfers abroad:

- Data should not be sent to countries outside the European economic Area unless those countries ensure adequate data protection.

Rights of individual (data subject)

→ The act gives individuals several rights regarding their data:

1. Access:

- Individuals can know if their data is being held, what it is, why it's used, and who can see it.

⇒ Right to ^{erase} ~~erase~~ ^{erase}

- They can also request to see their data and have it corrected or erased if wrong.

2. Transparency:

- Organizations must explain the logic behind automated decisions if requested. Clearly inform individuals about data collection & use.

3. Prevention of harm:

- People can stop data processing if it could cause harm or distress.

4. Direct marketing / Right to data portability

- Individuals can opt out of ^{to use data to market} ~~opt out~~ ^{to use data to market} their data being used for marketing.

5. Compensation:

- Individuals can seek compensation if their data is misused, causing them harm.

Right to Rectification

Scope of the Act:

→ The Act covers data processed both electronically and manually.

Exemptions:

→ Some data is exempt, such as:

- Data used for national security.
- Personal household data.

→ Exceptions to access rights include:

- Information that might infringe other's rights.

Exam marks.

Privacy

→ Privacy refers to the right or ability of an individual or group to control access to their personal information, communications and activities. It is about maintaining confidentiality, ensuring that sensitive information is protected.

→ Privacy is a complex issue. Two important laws help govern privacy and access to information:

- The Regulation of Investigatory Act
- The Freedom of Information Act

Regulation of investigatory Powers Act 2000:

→ RIPA is designed to control when & how authorities can monitor communications such as emails, phone calls, and internet use.

Who can monitor communication?

⇒ Government agencies, security services and law enforcement can intercept data for specific purposes like crime prevention.

⇒ Even some private organizations, such as internet service providers and employers, can monitor communications under certain conditions.

Why can monitoring be done?

⇒ Organizations can monitor communications for reasons such as:

- Checking facts like confirming the date of an order.

- Ensuring companies policies are being followed.

- Detecting or preventing unauthorized system use or crime.

- Ensuring systems work effectively such as by distinguishing between personal and business communication.

Concerns About RIPA:

1. Civil Liberties:

People are worried that allowing local councils and smaller agencies to use monitoring powers might lead to misuse or unnecessary surveillance.

2. Security Risks:

Experts argue that the law could make encryption systems less secure because it allows authorities to demand the keys used to protect private data.

Freedom of information Act:

The FOIA is about transparency, giving the public the right to access information held by public organizations.

Who does it apply to?

It applies to public bodies like parliament, government departments, schools, hospitals and local councils.

Key features:

Right to access:

People can request information held by public authorities.

Public interest Test:

if an authority does not want to release the information, it must justify why withholding it is in the public interest.

Information Commissioner:

A special office was created to enforce the Freedom of Information Act and resolve disputes through a tribunal.

Publication schemes:

Public organizations must regularly share specific information, like meeting records etc.

Exclusions & Conflicts:

Personal information is not covered, as this is protected under the Data Protection Act.

There can be conflicts when public records contain personal info.

The FOIA may require public release, while the data protection Act mandates privacy.

In Summary:

- o RIPA balances the need for security with privacy but raises concerns about misuse and encryption security.
- o FOIA promotes transparency, but requires careful handling to balance public access with personal privacy.

The impact of the internet:

Social Networking:

When a computer network connects people or organizations, it is a social network.

Original challenge:

Before the internet, data protection laws were designed to protect people's privacy from large organizations that collected and stored lots of personal information.

The internet's impact:

The internet has made it much easier for anyone to collect and share information about others. This has made the privacy problem bigger and more complicated.

The Question:

if the old data protection laws are still good enough to protect us in this new internet age.

Factors affecting the regulation of data processing:

1. Technology moves fast:

Technology is changing very quickly, making it hard to keep up with the rules and regulations of data.

2. Global nature of data:

Data is shared across countries. So it's difficult to have one set of rules that everyone follows.

3. Different legal systems:

Different countries have different laws about data, which makes it confusing

to regulate data that crosses borders.

4. Powerful interests:

Big companies and governments have a lot of power and influence, which can make it hard to regulate them.

Convergence of data Protection Practices:

→ Countries are starting to agree on similar rules for protecting data.

International agreements:

→ Countries are working together to create similar laws for data protection.

→ Countries are making their own laws that are more similar to each other.

→ These are various rules for data-protection that countries are following.

Defamation & Protection of Reputation:

→ It is easy to share information about others online, even if people use their real name online.

→ People can easily share false or harmful information about others online, which can damage their reputation.

Definition:

⇒ Publishing false information that damages someone's reputation can lead to legal trouble. This is called defamation. It can be spoken (slander) or written (libel).

→ Newspapers and other media outlets are often sued for defamation.

→ Most countries have laws that protect people from defamation. If someone's reputation is harmed by false information, they can take legal action.

The internet & Defamation:

⇒ The internet has made it easier for people to spread false information. This can damage someone's reputation.

for example, a student might post something negative about a teacher's online.

Who can be held responsible?

• The person who wrote the defamatory statement.

• The website or platform where the statement was posted.

• The internet service provider (ISP).

Global challenges:

→ The internet is global, which means that defamatory statements can be easily spread across borders.

→ This creates challenges for enforcing laws and protecting reputations.
for example:

if a defamatory statement is posted on a website in one country, but harms someone's reputation in another country, it can be difficult to determine which country's laws apply.

Pornography:

Pornography is sexually explicit content that is intended to arouse people. It can be in the form of images, videos or written words.